

## **Chapter 13: Legislatures**

### **1. Presidential and Parliamentary Systems**

- In **presidential systems** (e.g., the United States, Latin America), the legislature and the executive are elected separately. Presidents usually serve fixed terms, which gives stability but can also create gridlock if the legislature is controlled by the opposition.  
Example:
  - **U.S. (Obama, 2010–2016):** Fixed presidential term gave stability, but Republican-controlled Congress blocked major initiatives, leading to gridlock.
  - **Brazil (Dilma Rousseff, 2011–2016):** Also elected for a fixed term, but when Congress turned hostile, she faced legislative paralysis and eventually impeachment.
  - **Comparison:** Both cases show how fixed presidential terms ensure stability of office, but if the legislature is controlled by the opposition, policymaking can stall or collapse into open conflict.
- In **parliamentary systems** (e.g., the UK, Canada, India), the executive comes directly from the legislature. The prime minister and cabinet are dependent on the confidence of parliament. This can create more accountability but also instability if coalitions are fragile.

### **2. Head of State vs. Head of Government**

- In many parliamentary systems, the **head of state** (monarch, president) performs symbolic and ceremonial duties, while the **head of government** (prime minister) exercises political leadership.
- In presidential systems, these roles are merged: the president is both symbolic leader and chief executive. This can concentrate power and elevate the symbolic importance of the office.

### **3. Bicameral vs. Unicameral Legislatures**

- **Bicameral legislatures** (two chambers) often represent different interests: for example, the U.S. House of Representatives reflects population, while the Senate gives equal weight to each state. This system provides checks and balances but can slow lawmaking.
- **Unicameral legislatures** (one chamber) are simpler and faster, often used in smaller or more homogeneous societies (e.g., New Zealand, Denmark). However, they may be less effective at balancing different interests within a country.

### **4. What Legislatures Do**

- **Law-making:** Drafting, debating, and passing laws is the most visible function.
- **Representation:** Legislators act as a link between citizens and the state, voicing local or sectoral concerns at the national level.
- **Oversight and accountability:** Through hearings, inquiries, and questioning ministers, legislatures hold the executive accountable.
- **Budgetary power:** Legislatures often control spending and taxation, ensuring democratic oversight of public money.

## 5. **Pork-Barrel Politics**

- Refers to legislators using their positions to secure funding for local projects (bridges, roads, public works) that benefit their districts but may not serve the national interest. Funds may be diverted from pressing national needs toward projects that primarily serve narrow political purposes.
- While often criticized as wasteful, pork-barrel politics can also build consensus in legislatures by ensuring all regions get some benefits.

## 6. **Decline of Legislatures**

- **Executives driving policy initiatives:** In many democracies today, legislatures no longer set the main policy agenda. Instead, presidents, prime ministers, and powerful bureaucracies dominate decision-making. Executives have more resources (advisors, ministries, control over the budget) and can act more quickly than legislatures. For example, in France, major policy reforms are usually drafted by the president's office and government ministries, while the National Assembly debates them but rarely initiates entirely new policies.
- **Media spotlight on executives:** Modern media tends to focus on presidents and prime ministers because they provide clear leadership figures and compelling news stories. Legislatures, with their long debates and procedural complexities, often appear less attractive to cover. This creates a public perception of parliaments and congresses as slow, quarrelsome, or corrupt, while executives appear as decisive problem-solvers. For example, during crises like the COVID-19 pandemic, news coverage centered on prime ministers and presidents announcing measures, while legislatures received little attention.
- **Legislatures as reactive bodies:** As a result of these dynamics, legislatures are often described as reactive rather than proactive. Instead of shaping new policies, they frequently respond to executive proposals by debating, amending, or approving them. This can make legislatures look like "rubber stamps," especially when the ruling party or coalition controls a majority. For instance, in systems like Japan's postwar politics under the Liberal Democratic Party, parliament often endorsed cabinet proposals with little resistance, reflecting the dominance of the executive.

## **Chapter 14: Executives and Bureaucracies**

### **1. The Executive**

- The executive branch directs the government, sets policy priorities, and represents the state in foreign affairs.
- **Presidents** enjoy fixed terms and more independence from legislatures but face the risk of deadlock.
- **Prime ministers** are dependent on maintaining parliamentary support, making them more accountable but also more vulnerable to political instability.
- Leadership styles differ: some leaders rely on persuasion (e.g., Franklin D. Roosevelt), others on technocratic management, while charismatic leaders may mobilize mass support directly.

### **2. Bureaucracies: Definition and Functions**

- Bureaucracies are made up of **professional, career civil servants** who work in government departments and agencies. Unlike elected politicians, they are usually hired through merit-based systems and remain in their positions even when governments change. Their role is to **implement and administer laws and policies** passed by legislatures or directed by executives. This includes tasks such as tax collection, running schools and hospitals, managing public infrastructure, or enforcing regulations. Because they are permanent and not tied to political cycles, bureaucracies provide **continuity and stability** in governance. For example, while presidents or prime ministers may serve only a few years, the civil servants in ministries of finance, health, or foreign affairs stay on and ensure the day-to-day functions of the state continue smoothly.
- Functions include:
  - Administering laws (e.g., collecting taxes, providing public services).
  - Offering specialized knowledge on complex issues (healthcare, environment, defense).
  - Drafting detailed regulations and, in practice, helping to shape policy.

### **3. Bureaucratic Politics**

- Bureaucratic agencies are not neutral machines. They often compete for budgets, prestige, and policy influence.
- Conflicts between ministries, or even departments within the same ministry, can slow decision-making and lead to compromises.
- Sometimes agencies become “captured” by the industries they are supposed to regulate (e.g., financial regulators too close to banks).

### **4. Problems of Bureaucracy**

- **Red tape:** Too many procedures and rules can delay action and frustrate citizens.
- **Corruption:** When officials misuse their positions for personal or political benefit, public trust erodes.
- **Eichmannism:** Named after the Nazi bureaucrat Adolf Eichmann, who claimed he was “just following orders,” highlighting the danger of unthinking obedience.
- **Parkinson’s Law:** Work expands to fill available time; bureaucracies often grow regardless of need.

**Note:**

- **Parkinson's Law** is not the same as **Parkinson's disease**. They are very different concepts, though they both carry the name "Parkinson."
- **Definition of Parkinson's Law:** Coined by C. Northcote Parkinson in the 1950s, the law states that "work expands to fill the time available for its completion." This idea is not limited to individual tasks but also applies to how organizations, especially bureaucracies, operate.
- **Application to bureaucracies:**
  1. **Self-perpetuating growth:** Bureaucracies often expand in size and complexity even when there is no increase in actual workload. For example, instead of reducing staff when work becomes more efficient, bureaucracies tend to create new rules, committees, or departments, thereby generating additional work for themselves.
  2. **Job creation for subordinates:** Parkinson noted that officials tend to hire subordinates rather than rivals. Each new subordinate produces more paperwork and tasks, which in turn justifies the hiring of even more staff. This cycle fuels the continuous expansion of bureaucracy.
  3. **Artificial workload:** Work is often stretched to fill the time available rather than completed efficiently. For instance, if a committee is given a month to complete a report, it will likely take the full month—even if the task could have been finished in a week. This reinforces the tendency for bureaucracies to waste resources and time.
- **Why it matters in governance:**
  - Bureaucracies are designed to ensure continuity and stability in government functions, but Parkinson's Law highlights their **tendency toward inefficiency and growth without proportional need**.
  - This helps explain why governments often face problems of **bloated administrations**, rising costs, and overlapping responsibilities, even when technological advances or reduced demand should logically lead to smaller, more efficient bureaucracies.
  - The law illustrates how bureaucracies can become **self-serving institutions**, prioritizing their own expansion over the actual needs of citizens or the state.
- In short, **Parkinson's Law is applied here because it captures the internal dynamic of bureaucracies:** they rarely shrink in response to lower demand, but instead create additional work and layers of administration, ensuring their continued growth regardless of necessity.

## **5. Reform Challenges**

- Effective bureaucracies balance expertise with accountability.
- Some countries (e.g., Singapore, Finland) maintain efficient, corruption-free civil services, while others struggle with inefficiency.
- Reforms may include greater transparency, digitalization, or stronger ethical oversight.

## Chapter 15: Judiciaries

### 1. Types of Law

- **Criminal law:** Deals with offenses against society (e.g., theft, assault). The state prosecutes offenders, and penalties include fines, prison, or execution.
- **Civil law:** Governs disputes between individuals or organizations (e.g., contracts, property, divorce).
- **Constitutional law:** Involves interpretation of the constitution, often determining the limits of government power.
- **Administrative law:** Regulates government agencies and their actions.
- **International law:** Governs relations between states, though enforcement depends on international cooperation.

### 2. Legal Traditions

- **Common law:** Developed in England, emphasizes judicial precedent (“*stare decisis*”). Judges play a creative role. Used in U.S., UK, former British colonies.

#### Explanation:

- *Stare decisis* is a Latin phrase meaning “to stand by things decided.” In legal terms, it refers to the principle that courts should follow precedent, i.e., past judicial decisions are used when ruling on new cases with **similar facts or legal issues**. The phrase comes from the longer Latin expression “*stare decisis et non quieta movere*,” which means “to stand by decisions and not disturb settled matters.” It developed in English common law, where judges traditionally relied on earlier rulings to ensure consistency and predictability in the legal system.

#### Practical importance:

- *Stare decisis* ensures **stability** in law, since people and governments can rely on established rulings. It also promotes “**fairness**”, because similar cases are treated in similar ways. However, it does not mean precedent can never be overturned. Higher courts (like the U.S. Supreme Court) sometimes reverse past decisions, especially if they are deemed unjust or outdated (e.g., *Brown v. Board of Education* overturning *Plessy v. Ferguson* on racial segregation).
- **Plessy v. Ferguson (1896):** The U.S. Supreme Court upheld racial segregation under the doctrine of “**separate but equal**.” It ruled that racially separate public facilities (like schools, trains) were constitutional as long as they were supposedly equal in quality. In practice, this legalized segregation and reinforced racial inequality.
- **Brown v. Board of Education (1954):** The Supreme Court unanimously overturned *Plessy*. It declared that “**separate educational facilities are inherently unequal**,” making racial segregation in public schools unconstitutional. This case was a landmark victory for the Civil Rights Movement and laid the foundation for desegregation in the U.S.
- **Code law:** Originated in continental Europe (e.g., Napoleonic Code). Laws are systematically written down; judges apply the code rather than create precedent.
- **Religious law:** Legal systems rooted in religious texts, such as Sharia in Islamic countries or canon law in Catholic institutions.

### 3. Court Systems

- In the U.S., courts are organized at federal and state levels, with appeals leading up to the Supreme Court. *Marbury v. Madison* (1803) established judicial review, giving courts the power to strike down unconstitutional laws.
- In Europe, courts often use **investigating judges**, giving the judiciary a more active role in building cases.
- International courts (e.g., International Court of Justice, European Court of Human Rights) play a growing role in global governance.

### 4. The Role of Courts

- Courts are not merely neutral interpreters of the law; they actively shape politics and policy.
- The U.S. Supreme Court, for example, played decisive roles in ending segregation (*Brown v. Board of Education*), legalizing abortion (*Roe v. Wade*), and recognizing same-sex marriage (*Obergefell v. Hodges*).
- Courts can act as a “**parliament of last resort**,” taking on controversial issues that legislatures or executives avoid.

### 5. Judicial Politics

- Judges are influenced by ideology, public opinion, and political context. Even when independent, courts reflect broader cultural and political climates.
- Judicial independence is essential for rule of law. When courts are politicized or controlled by executives, democracy is weakened.
- A growing trend worldwide is the **judicialization of politics**, where courts increasingly make decisions on major social and political issues.